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Case Number: 24STCV00899 Hearing Date: September 21, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Quash Service
of Summons

The Motion to Quash Service of Summons is granted.

BACKGROUND

Plaintiff Laura Aguirre (Plaintiff) filed this action against MV
Transportation, Inc. (MV), alleging that Plaintiff was injured on May 26, 2022
at premises MV owned, maintained, and operated. Plaintiff later filed an
amendment to the complaint substituting La Shawn Evans (Evans) for Doe 1, and a
further amendment correcting the spelling of her name.

The causes of action are: (1) Premises Liability; and (2) General
Negligence.

Specially appearing Defendant Evans filed a Motion to Quash Service of
Summons. Plaintiff filed an Opposition.

LEGAL STANDARD

"A defendant, on or before the last day of his or her time to plead or
within any further time that the court may for good cause allow, may serve and
file a notice of motion ... [t]o quash service of summons on the ground of lack
of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10,
subd. (a)(1).) When a defendant challenges jurisdiction on that ground, "the
burden is on the plaintiff to prove the existence of jurisdiction by proving, inter
alia, the facts requisite to an effective service." (Dill v. Berquist

Construction Co. (1994) 24 Cal.App.4th 1426, 1440.)

Personal service is not the only route by which a court acquires jurisdiction over a defendant. "A general appearance by a party is equivalent to personal service of summons on such party." (Code Civ. Proc., § 410.50, subd. (a).) A defendant appears by answering, demurring, filing a notice of motion to strike, filing a notice of motion to transfer, moving for reclassification, giving the plaintiff written notice of appearance, or through an attorney's notice of appearance. (Code Civ. Proc., § 1014.) That list is not exclusive. What controls is "whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed." (Hamilton v. Asbestos Corp. (2000) 22 Cal.4th 1127, 1147, quoting Sanchez v. Superior Court (1988) 203 Cal.App.3d 1391, 1397.) "If the defendant raises an issue for resolution or seeks relief available only if the court has jurisdiction over the defendant, then the appearance is a general one." (Factor Health Management v. Superior Court (2005) 132 Cal.App.4th 246, 250 (Factor Health).)

The service of process statutes "are now to be liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant." (Bein v. Brechtel-Jochim Group, Inc. (1992) 6 Cal.App.4th 1387, 1392.) That rule extends to substituted service. (Ibid.)

ANALYSIS

I. General Appearance

Plaintiff argues that Evans submitted to the Court's jurisdiction before she filed this Motion. Plaintiff points to Evans's appearance for her deposition in this action, to counsel's statement on the record that he represented her, and to counsel's later agreement that her name could be corrected without a noticed motion.

A general appearance requires participation in the action that recognizes the court's authority to proceed. In Hamilton, the defendant was served with a motion to consolidate two actions for all purposes, did not oppose it, and then took part in the consolidated trial. The Supreme Court held that it had generally appeared in the action in which it had never been served. (Hamilton, *supra*, 22 Cal.4th at pp. 1148-1149.) In Sanchez, by contrast, the defendant appeared and testified at depositions in an action consolidated

for trial with a second action in which he had never been served. The Court of Appeal held that those activities “cannot reasonably be construed as a general appearance” in the unserved action. (Sanchez, *supra*, 203 Cal.App.3d at p. 1399.)

Evans gave her testimony in this action rather than in a companion case. “[T]he mere physical presence of a party or of his attorney in the court room during the trial, or at the taking of depositions where there is no participation, or the presence as a witness of a party over whom jurisdiction has not been acquired, will not of itself constitute an appearance in the action.” (Slaybaugh v. Superior Court (1977) 70 Cal.App.3d 216, 223-224.) Evans was present as a witness, and the attempted service postdated the deposition by three weeks.

Here, Evans did not take part in this action in a manner recognizing the Court’s authority to proceed. She attended a deposition Plaintiff took and gave testimony. (Navi Decl., ¶¶ 3, 5.) Before filing this Motion she filed nothing with the Court, initiated no discovery, and asked the Court for no relief. Nor is this Motion itself a general appearance. (Code Civ. Proc., § 418.10, subd. (d).)

Plaintiff relies on counsel’s statement at the outset of the deposition that he was “representing defendant MV Transportation and representing the witness here in deposition today.” (Navi Decl., ¶ 4, Ex. 2.) Counsel’s statement identified a client. Counsel raised no issue for the Court to resolve, and he sought no relief the Court could grant only with jurisdiction over Evans. (Factor Health, *supra*, 132 Cal.App.4th at p. 250.) Counsel gave no notice of appearance for Evans. (Code Civ. Proc., § 1014.) He also declined to accept service of the summons and complaint on her behalf. (Navi Decl., ¶ 7.)

Nor did counsel’s agreement that Plaintiff could correct Evans’s name without a noticed motion recognize the Court’s authority over Evans. Counsel also advised that his office would represent Evans after the correction. (Navi Decl., ¶ 7.) Neither act asked the Court for anything. Plaintiff filed that amendment, and Evans took no part in it.

Plaintiff’s reliance on Creed v. Schultz (1983) 148 Cal.App.3d 733 is misplaced. There, the party contesting jurisdiction served a notice of deposition and a demand for

production of documents. The court held that act a general appearance. (Id. at p. 740.) The Sanchez court distinguished Creed on the ground that the defendant before it “did not initiate any discovery” in the unserved action. (Sanchez, supra, 203 Cal.App.3d at p. 1398.) Evans noticed no deposition and served no discovery in this action.

Therefore, the Court concludes that Evans did not generally appear in this action. That conclusion disposes of Evans’s further contention that she attended the deposition under compulsion of a notice served on her employer. Plaintiff must establish that service on her was valid.

II. Substituted Service

Evans contends that she was never served, because the papers were left at a unit where she has never lived and with a person who is not a member of her household.

A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. (Code Civ. Proc., § 415.10.) Where personal delivery cannot be accomplished, Code of Civil Procedure section 415.20, subdivision (b) provides:

“If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served ... a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.”

The parties offer conflicting accounts of where Evans lived and of who received the papers. The proof of service states that the papers were left at 5891 Miramonte Boulevard with a person identified as a “Co-occupant.” It recites that the papers were left with a competent member of the household at the dwelling house or usual place of abode of the party. (Dankert Decl., Ex.

1.) Evans states that she has never lived at that address, and that it “has never been [her] dwelling house.” She states that her residence is 5891½ Miramonte Boulevard, that the two are separate units among six at the structure, that other individuals reside at the 5891 unit, and that no one else lived in her unit when service was attempted. (Evans Decl., ¶¶ 5-8.)

The return of a registered process server “establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647; see *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.) A presumption of that kind requires the trier of fact to assume the presumed fact “unless and until evidence is introduced which would support a finding of its nonexistence, in which case the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.” (Evid. Code, § 604.) Even assuming this return carries that presumption, Evans’s declaration would support a finding that she did not live at 5891 Miramonte Boulevard and that no member of her household received the papers. Therefore, the Court decides those questions on the evidence.

The Court finds that Evans resided at 5891½ Miramonte Boulevard when service was attempted, and that no one else lived in that unit. Evans has personal knowledge of where she lives and of who lives with her. (Evans Decl., ¶¶ 5-8.) Notably, Plaintiff’s own evidence places Evans at 5891½ Miramonte Boulevard, because she gave that address under oath at the deposition Plaintiff took three weeks before the attempted service. (Navi Decl., ¶ 5, Ex. 2.) Plaintiff offered no basis for the return’s description of the recipient as a co-occupant, and no declaration from the process server or from anyone else addressing the unit or the household.

Here, Plaintiff did not effect substituted service under Code of Civil Procedure section 415.20, subdivision (b). First, 5891 Miramonte Boulevard was not Evans’s dwelling house or usual place of abode. Second, the person who received the papers at a different unit was not a competent member of Evans’s household. Finally, the attempts recorded in the affidavit of reasonable diligence were all made at that same address. (Dankert Decl., Ex. 1.) ““Ordinarily, ... two or three attempts at personal service at a proper place should fully satisfy the requirement of reasonable diligence and allow substituted service to be made.” [Citation.]” (Bein, *supra*, 6 Cal.App.4th at pp. 1391-1392.) Attempts at a unit where Evans has never lived were not attempts at a proper place. Thus, Plaintiff did not show that a copy

of the summons and complaint could not with reasonable diligence be personally delivered to Evans.

Plaintiff's reliance on Bein and Ellard is misplaced. In Bein, the process server left the papers with the gate guard the defendants had authorized to control access to them and to their residence. The Court of Appeal held the guard a competent member of the household, because his relationship with the defendants made it more likely than not that he would deliver the papers to them. (Bein, supra, 6 Cal.App.4th at pp. 1393-1394.) In Ellard, the papers were left with the manager of the commercial mail facility the defendants used as their usual mailing address, one of the locations Code of Civil Procedure section 415.20, subdivision (b) identifies. (Ellard v. Conway (2001) 94 Cal.App.4th 540, 545-547.) In both cases the papers went to a location the statute identifies, and to a person whose connection to the defendants made delivery to them likely. Here the papers went to a unit that is not Evans's residence, and to a person the record does not connect to her.

Moreover, the liberal construction Plaintiff invokes applies only where the defendant has received actual notice. The Bein defendants did not claim that they failed to receive notice of the service. (Bein, supra, 6 Cal.App.4th at p. 1394.) Evans states that she was never personally served with the summons and complaint. (Evans Decl., ¶ 3.) Her counsel states that the proof of service was never served on his office and came to his attention only on review of the Court's docket. (Dankert Decl., ¶ 3.) Plaintiff submitted no evidence that the papers left at the 5891 unit reached Evans.

Plaintiff correctly observes that Taylor-Rush arose on a different form of service. That case involved service by mail on an out-of-state defendant under a statute requiring evidence of actual delivery. (Taylor-Rush v. Multitech Corp. (1990) 217 Cal.App.3d 103, 110.) However, Evans cites the case for a narrower proposition, and the posture makes no difference to it: "A defendant is under no duty to respond to a defectively served summons. The notice requirement is not satisfied by actual knowledge of the action without service conforming to the statutory requirements, which are to be strictly construed." (Id. at p. 111.) Evans knew of this action. (Reply, at p. 6:24.) That knowledge does not substitute for service conforming to the statute.

Plaintiff therefore failed to prove the facts requisite to effective

service.

That conclusion also answers Plaintiff's argument from the Motion's timing. Plaintiff concedes that the procedural history recited in the Opposition does not independently establish valid service. (Opp., at p. 9:25-26.) Evans's time to plead never began. No default could therefore be entered against her. (Code Civ. Proc., § 418.10, subd. (d).) MV, not Evans, filed the July 21, 2026 ex parte application to continue trial and to advance the hearing on this Motion. In any event, no act by a party who makes a motion under section 418.10 constitutes an appearance unless the Court denies the motion. (Code Civ. Proc., § 418.10, subd. (e)(1).) Evans's delay in filing this Motion, unaccompanied by conduct recognizing the Court's authority, did not cure the defect in service.

Plaintiff asks in the alternative that the Court permit an additional opportunity to serve Evans at 5891½ Miramonte Boulevard. (Opp., at p. 10:9-12.) An order quashing service does not dismiss the action. Plaintiff may serve Evans at the correct address without leave of court. The Court therefore denies the alternative request.

Accordingly, the Motion to Quash Service of Summons is granted.

CONCLUSION

The Motion to Quash Service of Summons is granted.